

Crown Asset Management, LLC v. Dean Pham
2026CUCL064261

Tuesday – August 18, 2026
Dept. 42

TENTATIVE RULING

Motion: Defendant’s Motion for Evidentiary Preclusion, or in the alternative, for an Order Compelling a Further Bill of Particulars under CCP § 454

Recommendation: The Court intends to DENY Defendant’s Motion for Evidentiary Preclusion, or in the alternative, for an Order Compelling a Further Bill of Particulars.

The Defendant moves for preclusion or further production pursuant to Code of Civil Procedure section 454. First, contrary to the Reply’s argument, Plaintiff did timely file an Opposition. Second, while the Opposition brief includes a typo referring to American Express, counsel’s role in this matter is clear. On the merits, the Court would DENY the Motion because the Complaint alleges only a breach of contract and account-stated claim. A bill of particulars is appropriate only for common counts, and neither claim in the Complaint qualifies.

Breach of contract is not a common count, and a bill of particulars therefore does not apply. Defendant will have to resort to regular discovery to fill in the gaps perceived in the allegations.

Although a bill of particulars is appropriate when a complaint alleges common counts, there is case law that a bill of particulars isn’t allowed for an account stated. See Rutter, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 8K-2, “Demand for Bill of Particulars:”

[8:1770] **Compare—not available where complaint for account stated:** But a bill of particulars is *not* appropriate in an action on an account stated, because an account stated is deemed to *merge the various items* on which the earlier accounts were based: i.e., there is nothing left to itemize. [*Ahlbin v. Crescent Comm’l Corp.* (1950) 100 CA2d 646, 648, 224 P2d 131, 133—plaintiff may ignore defendant's demand; *Distefano v. Hall* (1963) 218 CA2d 657, 677, 32 CR 770, 783]

The Motion DENIED in its entirety, as neither cause of action is subject to a demand for bill of particulars